

BOOK 5
First Legal Analysis under Regulation
(EU) 2023/1114 (MiCA)

Title	First Legal Analysis under Regulation (EU) 2023/1114 (MiCA)
Author	Mr Denis Bouzon
ORCID	0009-0007-8894-8902
Release / date	1.9.2; 25 September 2026
Landing page	www.osnias-clearing.com/regulation/
Licence	Creative Commons Attribution 4.0 International (CC BY 4.0)

Osnias documentation

Book 1	Architecture	https://www.osnias-clearing.com/architecture/ https://www.osnias-clearing.com/architecture/Osnias_Clearing_Functional_Architecture.pdf
Book 2	Security	https://www.osnias-clearing.com/security/ https://www.osnias-clearing.com/security/Osnias_End_User_Security_Audit_Readiness.pdf
Book 3	Osnias-ID	https://www.osnias-clearing.com/osniasid/ https://www.osnias-clearing.com/osniasid/Osnias-ID_White_Paper_Release_2.0-HAL.pdf
Book 4	Clearing Rules & Regulatory and Technical Review	https://www.osnias-clearing.com/rules/ https://www.osnias-clearing.com/rules/Livre-4-Osnias_Clearing_Regles_1-1-FR.pdf
Book 4 Annex	Clearing cycle	https://www.osnias-clearing.com/rules/Livre-4-Annexe-A-Calendrier-FR.pdf

0. Origin of this document

By email dated 22 September 2026, the AMF Innovation & Digital Finance team acknowledged receipt of our request of 2 September 2026 concerning the MiCA Regulation. It stated that it does not perform legal-qualification analyses on behalf of market participants and invited us:

- to conduct, or have conducted, a first legal analysis of our activity and provide it to the AMF;
- to provide further details on the project;
- with a view to a subsequent discussion and, where appropriate, an introduction to the relevant AMF teams.

This Book 5 responds to that invitation. It provides a detailed description of the project (Part 2), presents our own preliminary legal analysis (Parts 3 and 4), identifies key points requiring attention (Part 5), and sets out the matters on which we would like to engage with the AMF (Part 6). The document does not claim any predetermined MiCA classification: it describes the actual mechanisms, tests them against the potentially relevant legal categories and explains the preliminary conclusions reached.

The tokens referred to as “ORUSD” and “OEURO” in our request of 2 September 2026 are now referred to generically as “clearing tokens”. This change in terminology does not alter their functionality.

This preliminary analysis is based on the published technical documentation (Books 1 to 4 and Annex A to Book 4, referenced in Annex 1).

Table of contents

0. Origin of this document.....	2
Table of contents.....	2
1. Executive summary.....	3
2. Detailed project description.....	4
2.1 Current status.....	4
2.2 Functional architecture — Sei clearing registry and external escrow.....	4
2.3 Clearing-cycle calendar and sequencing.....	5
2.4 Allocation of roles, funds and keys.....	5
2.5 Stability of the functional perimeter and protocol-level enforcement.....	6
3.1 Functional and technical invariants of the clearing token.....	6
3.2 Preliminary conclusion on the EMT and ART categories.....	7
3.3 MINT/BURN request chain and identification of a potential issuer.....	8
4. Analysis of activities.....	8
4.1 Osnias activities.....	8
4.2 Node-operator activities.....	9
4.3 Clearing and settlement.....	9
5. Key legal issues and contemplated approaches.....	9
5.1 Escrow composition depending on the applicable qualification.....	9
5.2 BURN window and redemption right.....	9
5.3 Single chamber token and multiple MINT requesters.....	9
5.4 Insolvency proceedings affecting a member.....	10
5.5 Technical governance and administrative keys.....	10
6. Request for regulatory discussion.....	10
Annex 1 – Reference documentation.....	10
Annex 2 – Set-off as a civil-law mechanism.....	11
Annex 3 – Exclusive allocation clause for escrowed funds.....	11

1. Executive summary

The project

Osnias Clearing is an inter-blockchain multilateral clearing infrastructure currently under development on testnet. Clearing tokens are used as registry units within each chamber, which is defined by a currency and a cycle.

The Osnias architecture relies on a cross-chain identifier that identifies a clearing account together with invariants hard-coded into the blockchain. Osnias-ID has a routing structure conceptually comparable to TCP/IP and serves as the unique identifier within the Osnias clearing network.

Osnias-ID fits within 9 bytes, enabling minimal encapsulation alongside a 0x address within a 32-byte cluster and thereby supporting efficient use of EVM blockchain data structures.

Once the escrow has been established on a chain external to the clearing chain, under the responsibility of the node operator, the node may submit a MINT request through a cross-chain controller.

The request is processed by an encrypted cross-chain controller and is executed only after the protocol controls have been validated. Units circulate exclusively among admitted members; positions are then cleared and settled at the end of the cycle.

Qualification of clearing tokens

The possible inclusion of clearing tokens within the general definition of a “crypto-asset” in Article 3(1)(5) MiCA is retained as a working hypothesis for the purpose of testing the categories established by the Regulation; it is not treated as established.

On the facts currently documented, the constitutive conditions of the EMT and ART categories do not appear to be met. For EMTs, the protocol provides neither a permanent right of redemption at any time nor free circulation: BURN is cyclical, the token is non-swappable, confined to a chamber and subject to the Temporal Oracle. For ARTs, the 1:1 backing is designed as a chamber-conservation invariant rather than as a mechanism for stabilising a market price by reference to an external asset. If the general crypto-asset definition were retained without EMT or ART classification, MiCA Title II would be the next framework to examine, in particular as regards the crypto-asset white paper, notification and publication requirements, subject to the exemptions provided by the Regulation.

Position adopted

This analysis is based on the protocol characteristics actually documented, not on a preferred regulatory outcome. Node operators are responsible for their escrow and their relationship with end-users; they submit MINT/BURN requests for accounts within their own perimeter. Osnias provides the shared infrastructure, registry, cross-chain controller, fail-closed controls and clearing engine, without holding end-user funds or keys. The legal qualification of any potential issuer cannot be inferred from the technical vocabulary of MINT/BURN alone and must be assessed in light of the full factual matrix, the rights attached to the token and the contractual relationships.

Key issues identified

Legal significance of the 1:1 invariant; interaction of the BURN window with Article 49 if the EMT hypothesis were nevertheless retained; legal analysis of the sequence escrow → MINT request → protocol control → registry entry; composition of the escrow; and enforceability of clearing and escrow arrangements in insolvency proceedings. For each point, the document distinguishes established facts from legal qualifications that remain to be discussed.

Request.

We request a discussion on these matters and, if the AMF considers it useful, an introduction to the relevant AMF teams and, where appropriate, the ACPR, which is competent for electronic money institutions.

2. Detailed project description

2.1 Current status

- “Osnias Clearing” does not currently designate an incorporated legal entity. The domain name, documentation and technical assets are intellectual property held by Mr Denis Bouzon, founder and project lead.
- The smart contracts are deployed experimentally on Sei testnet and Ethereum Sepolia. No service is currently operated commercially or offered to the public, and no token sale is being conducted or planned.
- A governance entity — a Swiss-law Verein or an Andorran-law association, provisionally named “Osnias Clearing Consortium”, with no governance token — will be incorporated before any commercial deployment. The choice of jurisdiction for node operations forms part of the present regulatory process.

2.2 Functional architecture — Sei clearing registry and external escrow

The Osnias architecture is based on a structural separation between the canonical clearing registry maintained on Sei and the escrow, which remains external to that registry.

Clearing tokens are recorded and circulate on Sei. Each clearing account is identified by an Osnias-ID encoding, in particular, the network (KK), node (NNN), currency (MMM) and cycle (WW). A clearing chamber therefore groups accounts belonging to the same currency and the same cycle.

The escrow constitutes a layer separate from the clearing registry. Depending on the architecture selected by the node operator, it may be maintained:

- on an EVM infrastructure, including Ethereum or Arbitrum, through an escrow smart contract holding eligible assets, including authorised EMTs such as USDC or EURC;
- or within a CeFi infrastructure, through a bank escrow account denominated in official currency and operating through the SEPA rail, connected to the protocol via CCIP.

This separation is an architectural invariant: the clearing registry and the escrow are neither merged nor hosted on the same technical layer. Their consistency is ensured by the chamber’s 1:1 conservation invariant, under which the aggregate quantity of clearing tokens must correspond to aggregate eligible escrow within the same chamber, currency and cycle perimeter. Escrow integrity is also monitored on a node-by-node basis.

Token circulation remains restricted to the authorised perimeter of the chamber. P2P transfers are permitted only between registered members, and use of the tokens on DEXs, CEXs, AMMs, DeFi protocols or liquidity pools is excluded by the architecture. No remuneration or yield is attached to token balances.

At the close of the cycle, positions are calculated per member and then aggregated per node. Net balances between nodes are settled by the node operators, while Osnias retains its role as registry operator, clearing-calculation engine and protocol-control layer.

Structural invariant

- Sei = clearing registry and clearing tokens
- EVM or CeFi/SEPA = external escrow
- 1:1 invariant = consistency link between the two layers

2.3 Clearing-cycle calendar and sequencing

The calendar is defined in Annex A to Book 4 (DOI 10.5281/zenodo.22938745). It is calculated exclusively in UTC weeks, starting on Monday 21 September 2026. Three cycle profiles are defined: 1W (weekly clearing), 4W and 13W. A year comprises 52 weeks, 53 every seventh year and 54 every forty-ninth year, in order to keep 13W cycles aligned with the solstices and equinoxes.

- Monday: 24-hour clearing window closing the previous cycle (P2P closed, statements, dispute window, settlement).
- BURN: opens the new cycle for one day (Tuesday) in 1W and two days (Tuesday and Wednesday) in 4W and 13W. Any BURN request submitted outside this window is rejected.
- P2P phase: opens only after the BURN window. Token supply is non-decreasing during this phase (MINT permitted, no BURN); escrow remains locked on the EVM side and inaccessible to any party, while its representation circulates on Sei.

Osnias Clearing Cycle Sequence

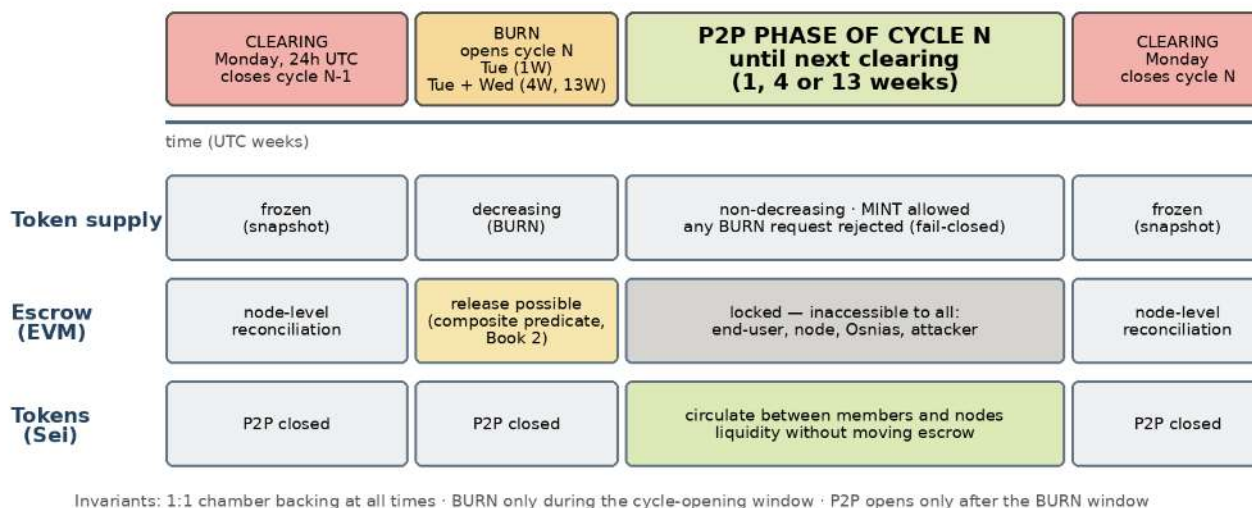


Figure 1 – Osnias clearing-cycle sequence

2.4 Allocation of roles, funds and keys

End-user (business member)

- Role: admitted under contract with its node; initiates and signs its transfers
- Funds: owner of the escrowed funds
- Keys: sole holder of its seed phrases (EVM signer, Sei authorisation and cold destination address), generated from independent seeds (Book 2)
- The node assigns the member an Osnias-ID clearing identifier.

Node operator

- Role: responsible for the escrow smart contract or bank escrow account; client relationship, AML/CFT, regulatory status; initiates MINT/BURN requests only for accounts within its NNN perimeter; carries out clearing and settlement within its perimeter
- Funds: escrow operated under its responsibility, with no redirection power
- Keys: no end-user keys; authentication mechanism for submitting MINT/BURN requests for its own accounts (KK, NNN pair), without autonomous creation authority

Osnias (then governance entity)

- Role: registry, clearing calculation, Temporal Oracle, encrypted cross-chain controller, fail-closed controls; technical execution of MINT/BURN after validation of the protocol conditions
- Funds: none
- Keys: no keys over funds; no unilateral administrative key (upgrades subject to shared governance with an execution delay)

In the EVM branch, release of escrowed funds is governed by a composite predicate (Book 2): end-user authorisation in a second independent security domain, a single-use proof and a destination restricted to the pre-registered cold address. No single authority — node, Osnias, upgrade authority or emergency role — can redirect the funds.

2.5 Stability of the functional perimeter and protocol-level enforcement

The protocol's functional restrictions do not rely solely on commercial policy. In the target architecture, they are intended to be enforced by the registry, Osnias-ID, controllers and oracles: fail-closed admission of authorised addresses, segregation by node, currency and cycle, absence of swap/bridge functionality for the clearing token, MINT/BURN controls and the 1:1 invariant at chamber level.

The cross-chain controller has no discretionary issuance authority. It applies deterministic protocol conditions to a request initiated by a node operator after the required escrow has been constituted. Any mismatch in NNN, currency MMM, cycle WW, time window, escrow state or conservation invariant causes the operation to be rejected on a fail-closed basis.

These characteristics provide a stable factual perimeter for the legal analysis without determining the MiCA qualification by themselves. Any material change to these invariants or addition of a new economic function should be subject to a new regulatory analysis before deployment. Before mainnet, these controls are intended to be documented, tested and audited.

3.1 Functional and technical invariants of the clearing token

The clearing token is a closed-registry token. Its invariants are programmed into the contract code and summarised below.

1. One token per chamber, currency and cycle

Each clearing token belongs to a defined chamber, a defined currency and a defined cycle. Registries are segregated by currency and cycle. Tokens belonging to different chambers, currencies or cycles cannot be mixed, merged or diluted.

Token naming by clearing chamber

and likewise for any other currency.

2. Closed to third-party smart-contract use

By design and by code, the token cannot be integrated into a third-party smart contract. Its use in third-party smart contracts, DEXs, CEXs, AMMs, liquidity pools, lending protocols, farming, staking or yield mechanisms is prohibited by the code.

3. Swap prohibited

The contract code prohibits exchanging the clearing token against another token. Swaps are excluded both by the code and by the token's functional perimeter.

4. Subject to the cycle Temporal Oracle

The token is subject to states defined by the Temporal Oracle. The Oracle determines, in particular, the MINT, BURN, P2P and clearing windows. During the 24-hour clearing window, P2P is closed. Balances are frozen to establish the reference snapshot used for position calculation, node aggregation and cycle netting.

5. P2P restricted to registered Osnias members

A P2P transfer is permitted only between addresses belonging to the Osnias network and mapped to a valid Osnias-ID in the registry. A Sei 0x address that is not mapped to a valid Osnias-ID is rejected on a fail-closed basis.

6. Non-cross-chain token

The clearing token remains on Sei. The code excludes LayerZero, bridges, wrapping and any migration mechanism that would allow the clearing token to move to another chain. By design, it is not transportable to another network.

7. 1:1 chamber backing invariant

For each chamber, the aggregate quantity of clearing tokens must correspond to aggregate eligible escrow within the same chamber, currency and cycle perimeter.

8. Fail-closed by default

If there is any inconsistency in Osnias-ID, currency, cycle, registry, escrow or oracle state, the operation is rejected.

Clearing tokens are therefore closed-registry tokens: non-exchangeable, non-cross-chain and non-programmable outside the protocol, restricted to one chamber, one currency, one cycle and a set of members identified by Osnias-ID.

Osnias-ID structure

- MMM: ISO 4217 currency code
- WW: cycle length in weeks (1, 4 or 13)

Two clearing accounts whose Osnias-IDs share the same MMM and WW belong to the same clearing chamber.

Example

ID1: 01-17-480-04-1234567-XX
ID2: 03-02-480-04-1548457-XX

Although these two accounts are on different networks (01 and 03) and different nodes (17 and 02), they share the same currency (480) and the same cycle (04). They therefore belong to the same clearing chamber and are linked to the same clearing token.

Regulatory framework

Article 3(1)(5) MiCA defines a crypto-asset as a digital representation of a value or of a right that is able to be transferred and stored electronically using distributed ledger technology or similar technology.

Clearing tokens are digital units stored and transferred on a distributed ledger. Their transferability is strictly limited to addresses admitted to the same chamber, and market trading is excluded by the architecture. These characteristics do not, by themselves, exclude the general definition: the determining question remains the nature of the value or right legally represented by the unit.

Preliminary conclusion.

The general crypto-asset definition may be relevant and is retained, as a matter of methodological prudence, as a working hypothesis for testing the MiCA categories. This hypothesis is neither a definitive classification under Article 3(1)(5) nor a presumption that Title II applies. Classification depends in particular on the nature of the value or right represented by the unit and on the rights actually attached to its holding.

3.2 Preliminary conclusion on the EMT and ART categories

EMT hypothesis

Article 3(1)(7) MiCA defines an EMT as a crypto-asset that purports to maintain a stable value by referencing the value of one official currency. Title IV, in particular Articles 48 to 50, establishes a specific regime: conditions applicable to the issuer, a claim of the holder against the issuer, issuance at par against receipt of funds, redemption at the holder's request at any time and at par (Article 49), and a prohibition on interest (Article 50).

Certain facts require this hypothesis to be examined: each chamber is denominated in a defined currency and the 1:1 invariant links aggregate eligible escrow to the quantity of clearing tokens in the chamber. Other characteristics, however, differ materially: the 1:1 invariant is designed as a registry-conservation rule; the protocol does not confer a permanent redemption right, as BURN opens only at the start of the new cycle after the previous clearing; the token is non-swappable by construction, unlisted, confined to a closed chamber of authorised accounts and subject to the

Temporal Oracle windows. On the documented facts, the constitutive conditions and legal regime of an EMT therefore do not appear to correspond to the Osnias mechanism as designed. In particular, the absence of a permanent redemption right represents a material difference from Article 49. This conclusion remains preliminary and subject to the assessment of the competent authority.

ART hypothesis

Article 3(1)(6) MiCA defines an ART as a crypto-asset, other than an EMT, that purports to maintain a stable value by referencing another value or right or a combination thereof, including one or more official currencies. The 1:1 escrow must therefore be tested against this definition. In the Osnias architecture, that escrow is documented as a chamber-conservation and security invariant: it is not used to organise listing, market-making or market-price stabilisation. The token has no independent market price, is not freely exchangeable against the escrowed asset, is non-swappable by construction, has no DEX, CEX, AMM, bridge or external-liquidity mechanism and cannot circulate outside the authorised chamber perimeter. Its circulation is also bounded by the cycle and the Temporal Oracle. On the documented facts, the unit's function therefore does not appear to correspond to an ART that purports to maintain a stable value by reference within the meaning of Article 3(1)(6). This conclusion remains preliminary and subject to the assessment of the competent authority.

Preliminary conclusion

On the facts currently documented, the EMT classification (Article 3(1)(7); Title IV, in particular Articles 48 to 50) and ART classification (Article 3(1)(6); Title III) do not correspond to the Osnias mechanism as designed. This conclusion is based neither on the token's name nor on regulatory convenience; it follows from comparing the legal criteria with the functions actually provided by the protocol. If clearing tokens were found to fall within the general crypto-asset definition without qualifying as EMTs or ARTs, the regime for crypto-assets other than ARTs and EMTs under Title II would then need to be examined. Depending on the specific terms of any offering, this would include analysing the crypto-asset white-paper requirements, notification to the competent authority, publication and the exemptions provided under MiCA. This memorandum treats no classification as definitively established and submits this preliminary analysis to the competent authority.

Principal legal references:

Regulation (EU) 2023/1114 (MiCA), in particular Article 3(1)(5), (6) and (7); Title II, Articles 4 to 15; Title III; Title IV, Articles 48 to 50.

3.3 MINT/BURN request chain and identification of a potential issuer

The clearing token is unique at chamber level. Once the required escrow has been constituted under the responsibility of the node operator, the operator may initiate a MINT request only for accounts attached to its own NNN perimeter. The request is transmitted through the encrypted cross-chain controller and is executed only after validation of the protocol controls, including NNN/MMM/WW consistency, escrow state, opening of the relevant time window and compliance with the chamber's 1:1 invariant. The same principle applies to BURN requests within the window defined by the cycle.

The node operator therefore has no autonomous power to create or destroy the token: it submits a request within its perimeter. The constitution of escrow, the MINT request and the registry entry of the unit are functionally and legally distinct steps in the architecture described. Osnias receives no funds, and the controller does not make a discretionary issuance decision: it applies deterministic protocol rules. This separation does not, by itself, establish that no issuance occurs for MiCA purposes; however, it prevents the issuer from being identified automatically solely by reference to the actor initiating the MINT request or the technical component executing it. The identity of any potential "issuer" within the meaning of Article 3(1)(10) must therefore be assessed in light of the full factual matrix, the rights attached to the token and the contractual relationships.

Accordingly, the protocol grants no actor autonomous and discretionary power to create units: constitution of the escrow, submission of the MINT request, protocol validation and registry entry remain distinct functions whose interaction must be taken into account when identifying, where applicable, the issuer for MiCA purposes.

4. Analysis of activities

4.1 Osnias activities

MiCA service	Analysis	Preliminary conclusion
--------------	----------	------------------------

Custody and administration of crypto-assets on behalf of clients (Art. 3(1)(17))	Osnias holds no keys and has no power over escrow; no unilateral administration function	Not characterised, subject to the effective absence of administrative roles
Transfer services for crypto-assets (Art. 3(1)(26))	Transfers are initiated and signed by the end-user; the protocol validates conditions and rejects on a fail-closed basis without acting on instruction	Not characterised; the cycle-opening fee order must be initiated under node authority
Exchange of crypto-assets for funds or other crypto-assets	No conversion is organised by Osnias; MINT/BURN are protocol operations executed following a node request and validation of chamber controls	Not characterised for Osnias on the facts described; the legal nature of the MINT/BURN operation must be assessed separately
Operation of a trading platform for crypto-assets (Art. 3(1)(18))	No order book, price formation or matching; clearing of obligations already entered into	Not characterised

4.2 Node-operator activities

- Management of escrow and submission of MINT/BURN requests for accounts within the node perimeter; any qualification of those operations as issuance or distribution depends on the MiCA category ultimately retained and the associated contractual rights.
- Escrow responsibility: end-user control of keys and the inability to redirect funds limit, without necessarily excluding, a potential qualification as custody of crypto-assets on behalf of clients.
- Transfers of escrow assets and settlement of net balances: interaction with payment-services regulation and, depending on the classification of the relevant assets, with other applicable regimes must be assessed.
- AML/CFT obligations and the Transfer of Funds Regulation (Regulation (EU) 2023/1113) in relation to transfers between members.

4.3 Clearing and settlement

Multilateral netting and settlement of net balances require an analysis separate from MiCA. Directive 98/26/EC provides, for systems within its scope, for the enforceability of transfer orders and netting, including in the event of a participant's insolvency. Under French law, Article L. 330-1 of the Monetary and Financial Code defines systems benefiting from that framework and provides, in particular, for their designation or notification under the applicable conditions. At this stage, the Osnias project is not presented as a system designated under that Directive. The future relevance of that regime, as well as the Eurosystem's PISA oversight framework for payment arrangements, must therefore be assessed separately in light of the status, scale and functions actually performed upon operational deployment.

5. Key legal issues and contemplated approaches

5.1 Escrow composition depending on the applicable qualification

Finding. If the EMT classification were retained, funds received by the issuer would be subject to the applicable safeguarding requirements. In the target architecture, escrow may consist of authorised EMTs (including EURC or USDC) on EVM, or official currency held in a bank escrow account, depending on the selected branch. The legal compatibility of each arrangement must be assessed separately.

Point for discussion. For the EVM branch, escrow consisting of authorised EMTs is verifiable on-chain and contributes to the chamber's 1:1 invariant. This technical fact does not predetermine its legal qualification as a safeguarding mechanism. The CeFi branch — a SEPA bank escrow account connected to the protocol — remains an alternative depending on the regulatory framework ultimately applicable.

5.2 BURN window and redemption right

Finding. The Osnias protocol does not provide a permanent redemption right. BURN is a cyclical operation available at the start of the new cycle, after clearing of the previous cycle; any request outside that window is rejected. This arrangement is a design invariant linked to chamber security and conservation during the P2P phase.

Analysis. If the EMT classification were retained, this feature would need to be assessed against the redemption regime under Article 49 MiCA. The absence of a permanent redemption right constitutes a serious legal obstacle to alignment with that regime, which provides for redemption at the holder's request, at any time and at par. This memorandum does not infer from that difference alone an automatic exclusion from the EMT definition; it treats the difference as a material element of the classification to be assessed with the competent authority.

5.3 Single chamber token and multiple MINT requesters

Finding. A chamber uses a single clearing token. Multiple node operators may each, for accounts attached to their own NNN perimeter and after constitution of the required escrow, transmit a MINT request to the cross-chain controller. The controller applies the protocol controls before any unit is created. The node has no autonomous MINT authority, and a request originating from another NNN must be rejected.

Analysis. This architecture requires a distinction between the actor controlling the escrow, the actor requesting the MINT, the protocol mechanism authorising it and the entity that could legally be regarded as the issuer. These functions are not automatically equated in this memorandum. Identification of the potential issuer therefore forms part of the matters submitted for discussion with the AMF.

5.4 Insolvency proceedings affecting a member

Finding. French insolvency law, which includes mandatory rules, may prevent enforcement of the escrow for the benefit of chamber creditors (French Commercial Code, Arts. L. 622-7, L. 622-13 and L. 622-21).

Contemplated approach. Exclusive allocation clause for escrowed funds (Annex 3), use of a French security trust (fiducie-sûreté) for the SEPA branch and, in the longer term, examination of possible system designation under Directive 98/26/EC. Exposure is limited to obligations arising during the current cycle.

5.5 Technical governance and administrative keys

Finding. During the testnet phase, administrative keys for the experimental contracts are held by the project founder.

Contemplated approach. Before any commercial deployment: transfer of technical assets to the governance entity, removal of any unilateral administrative key over escrow arrangements, and upgrades subject to shared governance with an execution delay.

6. Request for regulatory discussion

On the basis of this preliminary analysis, we would like to discuss the following matters with the AMF:

- the MiCA classification applicable to clearing tokens under the criteria of Article 3, in light of our preliminary conclusion that, on the documented facts, the EMT and ART categories do not correspond to the Osnias mechanism as designed;
- if the AMF shares this preliminary analysis and nevertheless considers that the tokens fall within the general definition of a crypto-asset, the practical application of MiCA Title II, including any white-paper, notification and publication requirements and any relevant exemptions;
- the legal significance of the 1:1 escrow and, depending on the classification ultimately retained, the compatibility of escrow consisting of authorised EMTs (EURC, USDC) held in smart contracts on Ethereum and Arbitrum;
- the interaction between the cyclical BURN window — which does not create a permanent redemption right — and the EMT criteria and regime, including Article 49, should that classification nevertheless be considered;

- the identification of any potential issuer within the meaning of Article 3(1)(10), given the functional separation between constitution of the escrow, submission of the MINT request by the node, the encrypted cross-chain controller, fail-closed controls and registry entry of the chamber's single token.

If the AMF considers it useful, we would be grateful for an introduction to the relevant AMF teams and, where appropriate, the ACPR. We remain available to provide any clarification or a demonstration of the testnet.

Denis Bouzon — contact@osnias-clearing.com

Annex 1 – Reference documentation

Document	Purpose	Reference
Book 1 – Functional Architecture	Architecture; separation of clearing and settlement	HAL hal-05752756; DOI 10.5281/zenodo.22807190
Book 2 – Security Audit Readiness	End-user security, keys, release predicate	HAL hal-05756811; DOI 10.5281/zenodo.22870678
Book 3 – Osnias-ID, Release 2.0	Identity, topology, networks, nodes, currencies, cycles	HAL hal-05743547; DOI 10.5281/zenodo.22704626
Book 4 – Clearing Rules, Release 1.1	Clearing rules, roles, invariants, controls	HAL hal-05760527; DOI 10.5281/zenodo.22922199
Book 4 – Annex A	1W, 4W and 13W cycle calendar; spreadsheet	DOI 10.5281/zenodo.22938745

Presentation pages: www.osnias-clearing.com (Architecture, Security, Osnias-ID, Rules).

Annex 2 – Set-off as a civil-law mechanism

The set-off implemented at the close of each cycle is not a legal innovation. Established in the French Civil Code of 1804 (former Articles 1289 to 1299) and recodified by Ordinance No. 2016-131 of 10 February 2016 in Articles 1347 to 1348-2, it extinguishes reciprocal obligations. Contractual set-off under Article 1348-2 allows parties to agree to extinguish present or future obligations. Through each member's adherence, the network Rulebook organises multilateral netting at the clearing date; Osnias calculates that netting without interposing itself as counterparty, by novation or as a central counterparty. Only the technical implementation — a distributed, timestamped and verifiable ledger — is new.

Annex 3 – Exclusive allocation clause for escrowed funds

X.1 Funds escrowed by the Member are allocated exclusively and irrevocably, for the entire duration of the current cycle, to settlement of the Member's net debit position vis-à-vis the creditors of the clearing chamber.

X.2 Such funds may be released, transferred or returned only in accordance with the Osnias protocol rules: (i) through settlement at the clearing date, on the basis of the finalised clearing statement; or (ii) through return to the Member during the BURN window of the following cycle.

X.3 No instruction from the Member, node operator or any third party, and no event external to this agreement, may cause release of the funds outside the mechanisms provided in Article X.2, to the fullest extent permitted by law.

X.4 The escrow arrangement shall not execute any transaction involving the funds unless such transaction results from the protocol.